

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FRANCESCO CRIPPA,

Petitioner

VS.

MICHELLE O'RIORDAN,

Respondent

) Case Number: FDI-25-802085

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR ATTORNEYS FEES AND COSTS AND TO HEAR MOTION ON OR
BEFORE JUNE 23, 2026; REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY,
VISITATION (PARENTING TIME), ATTORNEY FEES AND COSTS, ROUTINE DRUG TESTING
FOR MICHELLE O'RIORDAN

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Father's Request for Order filed 2/25/2026

A. Procedural History

- 1) Petitioner Francesco Crippa (Father) and Michelle O'Riordan (Mother) have two minor children,
Kilian (DOB 11/29/2017, age 8) and Aideen (DOB 6/30/2021, age 4).
- 2) In September 2025, the parties filed mutual requests for Domestic Violence Restraining Orders
(DVRO) in related case FDV-25-818616 and the Court issued temporary restraining orders
against both parties. On 9/24/2025, the parties reached an agreement regarding custody and
parenting time and agreed to extend the mutual temporary restraining orders until 5/6/2026.
Pursuant to the parties' agreement, the Court awarded sole legal and sole physical custody to

1 Mother and granted Father parenting time from Friday 3pm to Sunday 10am. The mutual
2 temporary restraining orders lapsed on 5/6/2026.

- 3 3) On for hearing is Father's 2/25/2026 Request for Order seeking sole legal and sole physical
4 custody of both children. Father requests the following: (1) sole legal and sole physical custody to
5 Father, or, alternatively, joint legal and joint physical custody on a week-on/week-off basis; (2)
6 Mother to go through randomized drug testing at WellnessMart, MD at 166 Geary St., #906, San
7 Francisco, CA 94108 or another facility deemed appropriate by the Court; and (3) an award of
8 \$9,000.00 in attorney's fees to Father pursuant to Family Code section 271 for necessitating the
9 Request for Order. Father additionally requests that the Court deduct this amount from Mother's
10 share of the parties' community estate. Father states Mother leveraged her temporary DVRO to
11 gain full control over the children and the marital property. Father states Mother has an admitted
12 history of recreational drug use and uses drugs while the children are under her custody, and this
13 harms the children. See 11/14/2025 Response to Father's DVRO request. Regarding his request
14 for sanctions under Family Code section 271, Father states Mother is not lucratively employed,
15 and the parties' net community estate exceeds \$1.5 million in value. No further information was
16 given regarding Mother's attempt to frustrate the litigation process.
- 17 4) On 2/25/2026, Father filed an Income and Expense Declaration.
- 18 5) On 4/29/2026, Mother filed a Preliminary Declaration regarding service of Declaration of
19 Disclosure and an Income and Expense Statement. On 5/5/2026, Mother filed an Income and
20 Expense Declaration.
- 21 6) On 5/19/2026, the parties attended mediation and were unable to reach an agreement. Father
22 requested a 2-2-5 parenting time schedule; Mother requested an additional day of parenting time
23 per week for Father.
- 24 7) On 6/9/2026, Mother filed a Responsive Declaration to Father's 2/5/2026 Request for Order.
25 Mother requests that the Court (1) not apply the Family Code section 3011(a)(4) factors against
26 either party; (2) maintain the previously agreed-upon custody schedule in mediation, or,
27 alternatively, grant Father an additional day to his parenting time and set a review hearing; (3)
28 grant Mother a right of first refusal; (4) not institute mandatory drug testing, but if the Court does
29 so, order Father to undergo to same process; and (5) deny Father's request for attorney fee award.

1 Mother states Father is recycling his allegations in his prior DVRO request in the present Request
2 for Order. According to Mother, both parties have engaged in drug use together and Father's drug
3 consumption has been greater than hers. Mother states she never consumed drugs in front of her
4 children, and any prior consumption has primarily taken place in social settings or privately
5 between the parties. Mother additionally states she has ceased drug use from 9/24/2025 after the
6 Court ordered a 75% custody timeshare to Mother and 25% timeshare to Father, and Father has
7 not presented evidence of Mother's drug use for the past year. Mother states she is not opposed to
8 a 50/50 parenting time schedule in principle. She states Father's work schedule makes it
9 impossible for him to have sole legal and sole physical custody of the children, that she offered
10 him additional parenting time, and Father did not agree with her proposal and did not propose any
11 solutions to accommodate his work schedule. Regarding Father's request for sanctions under
12 Family Code section 271, Mother states Father's rationale is unsupported because he is
13 demanding fees expended to oppose a custody order which he voluntarily signed in the past.

14 8) On 6/9/2026, Father filed an updated Income and Expense Declaration.

15 **B. Findings and Order**

- 16 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
17 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
18 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
19 children is the United States.
- 20 2) The Court finds it is in the children's best interests to maintain the current joint legal custody
21 order. In addition, the parties shall continue to follow the current parenting time schedule, with
22 the exception that Father shall have additional parenting time with the children from Tuesday
23 after school pick up to Wednesday morning school drop off. The Court will not set a review
24 hearing at this time, but the parties may file a new request for order if anything changes, or if they
25 have additional requests and are unable to reach an agreement.
- 26 3) The Court denies the parties' requests for drug testing but orders the parties not to use substances
27 around the children, during their parenting time, or in a way that affects their parenting time with
28 the children.
- 29 4) Father's request for sanctions under Family Code section 271 is denied.

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3 **II. Mother's Request for Order filed 5/5/2026**
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5 **A. Procedural History**

- 6 1) On 5/5/2026, Mother filed a Request for Order seeking \$30,000 in Family Code section 2030
7 attorney's fees and costs.
- 8 2) Mother's attorney Kelly Robbins filed a declaration on 5/5/2026 stating that Mother has incurred
9 \$10,052 in attorney's fees and costs to date. Ms. Robbins estimates that Mother will incur
10 \$30,000 or more in additional attorney's fees going forward "to prepare for and attend a hearing
11 on child custody, routine drug testing, and attorney's fees and costs, to conduct discovery as
12 needed, and to prepare or respond to a formal settlement agreement." Based on the redacted
13 billing statements attached to Ms. Robbins' declaration, it appears Ms. Robbins began
14 representing Mother in February 2026, several months after the parties' Requests for DVRO were
15 dismissed in the related FDV matter.
- 16 3) On 2/25/2026, Father filed an Income and Expense Declaration. Father is 45 years old and is the
17 Chief Technical Officer for Clearspeed. He earns \$25,000 per month. Father does not report
18 earning any bonuses. Father states that he has approximately \$32,000 in liquid savings and
19 \$481,003 in real property. Father estimates his monthly expenses to be \$16,870, which includes
20 carrying costs for the marital residence (where Mother exclusively resides) and \$3,400 per month
21 in rent (which the Court presumes is for Father's residence). The Court notes that the paystubs
22 attached to Father's Income and Expense Declaration show that he earns \$18,722 per month in
23 net income.
- 24 4) On 5/5/2026, Mother filed an Income and Expense Declaration. Mother states that she is 38 years
25 old and has a Higher National Diploma in Music, Management, and Sound. Mother states she was
26 last employed as an Operations / Account Manager for Yelp in October 2017. Mother states she is
27 currently self-employed as an independent contractor for Rover and provides pet sitting and dog
28 walking services, earning on average \$1,500 per month. Mother states she has \$12 in liquid
29 savings, \$0 in investments, and owns \$536,000 in real and personal property. Mother states that

1 she owes \$2,479 in credit card debt. Mother states that her current expenses total \$1,345 per
2 month. Mother estimates that her proposed needs are \$6,850 per month.

3 5) On 6/9/2026, Father filed a Responsive Declaration asking that the Court either deny Mother's
4 request for fees or reallocate any fee award upon division of the community estate. Father states
5 that although there are currently no support orders in place, he has been paying for the carrying
6 costs of the marital residence where Mother resides as well as her credit card expenses (which
7 totaled \$5,478 in May 2026). Father states that in May 2026, \$11,446 of his net income went to
8 Mother, leaving him with \$6,806 in net disposable income. Father states the community estate
9 has an undisputed value of \$750,000, most of which is in the form of home equity. Father asks
10 the Court to reallocate any fee award upon division of the community estate. Father further notes
11 that Mother's attorney's declaration did not explain how she arrived at the \$30,000 figure
12 requested.

13 6) On 6/9/2026, Father filed an updated Income and Expense Declaration. Father is now earning
14 \$27,308 in gross per month (\$17,394 net per month). Father states that he has \$7,060 in liquid
15 savings, \$0 in investments, and \$516,000 in real property. Father states he has paid his attorney
16 \$25,834 to date and owes \$0. Father does not report any debts.

17 7) On 6/15/2026, Mother filed a Reply Declaration. Mother notes that Father has already incurred in
18 attorney's fees nearly the \$30,000 she is requesting. Mother admits that she uses a credit card in
19 Father's name for household expenses, children's clothing, food, transportation, and some
20 discretionary spending. However, Mother also states that she has her own credit card for which
21 she pays the balance and a significant portion of her income the past year has gone towards their
22 daughter's preschool tuition which Father has not contributed to. Mother maintains there is a
23 disparity in access to funds to pay legal fees.

24 **B. Findings and Order**

25 1) The Court finds that Father is currently using his income to pay both parties' housing and person
26 expenses as well as expenses for the children. Mother, on the other hand, uses her modest income
27 to pay for both personal and children's expenses. Without further information regarding what
28 amount Father is paying towards each party's credit card expenses each month, the Court is
29 unable to ascertain whether there is a disparity in access to funds to pay legal fees. The Court also

1 notes that no facts or argument were presented regarding why Mother is currently earning less
2 than full-time minimum wage income.

- 3 2) The Court also notes that, apart from the \$7,000 in a checking account identified by Father, there
4 appears to be no other source of liquid savings from which to make a fee award.
- 5 3) No later than 6/26/2026, Father shall pay to Mother \$3,500 as and for attorney's fees and costs
6 under Family Code section 2030, which represents one-half of the \$7,000 Father has in his
7 checking account.
- 8 4) Mother's request for additional attorney's fees and costs (above and beyond \$3,500) is denied
9 without prejudice to a new Request for Order. If Mother chooses to file a new Request for Order,
10 she must present evidence regarding what amount in credit card expenses Father pays on her
11 behalf per month and why she is currently earning less than full-time minimum wage income.
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13 **III. Preparation of Order**

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- 15 1) Father's attorney shall prepare the Findings and Order After Hearing.
- 16 2) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).
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